

Digital Branding

Proposal



Presented to:

VIDALITY

Prepared for:

Deborah Tucker, Founder

Proposal Date: 7/23/2024 | Expires in: 30 Days

Consulting

We'll give direction to VIDALITY's marketing strategy, honing your tactics, and maximizing your budget to produce the best results possible with every dollar.

Here's what we recommend:

Bi-Weekly Consultations

- Meeting frequency: Bi-weekly
- Meeting length: up to 60 minutes
- Meeting format: Video/Phone conference

Community Management

It's designed to encourage Followers, get VIDALITY Comments and Likes as well as build your reputation online.



Features

- **Content Partner Activations** (2) live streams/webinars
- **Up to 5 post per week** within the community
- **30-Day Content Calendar** - We'll design an easy-to-understand content calendar so you have a birds eye view of posts and know exactly what type of content is going out when.
- **Up to 5 Custom Graphics** - for promotional campaigns, quotes, and holidays.
- **Up to 1-Hours of Weekly Reactive Engagement** - Responses to questions and comments on posts where you're tagged.
- **Up to 1-Hours of Weekly Proactive Engagement**- Engagement with content posted by your target market.

Bi-Weekly Email Marketing

Build your lists, improve your performance, and drive more ROI with our email marketing services.



Deliverables

- up to 2 conversion related emails / month
- up to 500 words
- 1 Revision Cycle

Your Investment

Monthly

Item	Price	Qty	Subtotal
Community Management	\$1,500.00	1	\$1,500.00
Bi-Weekly Email Marketing	\$300.00	1	\$300.00
Bi-Weekly Consultations	\$200.00	1	\$200.00
Subtotal			\$2,000.00
Amount due			\$2,000.00



Agreement

Date: 7/23/2024

Between "us", Digital Delane, and "you", VIDALITY

You VIDALITY, located at 11024 Balboa Blvd, #1402 Granada Hills CA 91344 are hiring Digital Delane located at 6080 Center Dr. 6th Floor, Los Angeles CA 90045 to perform services outlined in our previous correspondence.

1.0 Services Rendered

DIGITAL MARKETING STRATEGY & MANAGED SERVICES

We'll deliver digital marketing managed services.

ERRORS

We can't guarantee that our work will be error-free (we're human!) so we can't be liable to you or any third-party for damages, including lost profits, lost savings or other incidental, consequential or special damages, even if you've advised us of them.

2.0 Mutual Cooperation

We agree to use our best efforts to fulfill and exceed your expectations of the deliverables listed above. You agree to aid us in doing so by making available to us needed information pertaining to your website and to cooperate with us in expediting the work.

3.0 Charges for Services Performed

Requests above and beyond those listed in the budget may be considered out-of-scope and an amendment to the budget will be recommended. Charges will be auto-renewed every 30-days. Projects that go dormant for longer than 30 days will incur a fee to resume work at the discretion of Digital Delane.

4.0 Terms of Payment

4.1 BILLING SCHEDULE

We're sure you understand how important it is as a business that you pay the invoices that we send you promptly. We're also sure you'll want to maintain a positive working relationship and keep the project moving forward, so you agree to stick tight to the payment schedule outlined in this proposal.

Digital Delane will invoice VIDALITY fees outlined in this proposal. If the project is completed before the specified date, the client has the option to remit payment sooner.

4.2 CLIENT AGREEMENT TO PAY

You agree to pay our initial (1st) invoice upon receipt which will act as a deposit for the project. Every invoice after that will have due upon receipt payment terms. In the event payment is not made within 15 days, Digital Delane will charge a late payment fee of 2.5% per month on any overdue and unpaid balance not in dispute, to cover the manpower, interest, and other costs Digital Delane pays for carrying overdue invoices from VIDALITY. In addition, Digital Delane reserves the right to stop work until payment is received.

4.3 COLLECTION COSTS

In the event that we incur legal fees, costs and disbursements in an effort to collect our invoices, in addition to interest on the unpaid balance, you agree to reimburse us for these expenses.

5.0 Cancellation of Plans

You have the right to modify, reject, cancel or stop any and all plans or work in process. However, you agree to reimburse us for all costs and expenses we incurred prior to your change in instructions, and which relate to non-cancelable commitments, and to defend, indemnify and hold us harmless for any liability relating to such action. We agree to use our best efforts to minimize such costs and expenses.

6.0 Responsibilities of Digital Delane and VIDALITY

6.1 Digital Delane's Responsibility For Releases

We shall obtain releases, licenses, permits or other authorization to use testimonials, copyrighted materials, photographs, artwork or any other property or rights belonging to third parties obtained by us for use in performing services for you (If applicable).

6.2 VIDALITY's Responsibility For Releases

You guarantee that all elements of text, images, or other artwork you provide are either owned by your good selves or that you have permission to use them. Then when your final payment has cleared, copyright will be automatically assigned as follows:

You'll own the visual elements that we create for this project. We'll give you source files and finished files and you should keep them somewhere safe as we're not required to keep a copy. You own all elements of text, images, and data you provided unless someone else owns them.

We'll own the unique combination of these elements that constitutes a complete design and we'll license that to you, exclusively and in perpetuity for this project only, unless we agree otherwise. We can provide a separate estimate for that.

6.3 Client Responsibility For Accuracy

You shall be responsible for the accuracy, completeness, and propriety of information concerning your products and services which you furnish to us verbally or in writing in connection with the performance of this Agreement.

7.0 Confidentiality

Digital Delane acknowledges its responsibility, both during and after the term of its appointment, to use all reasonable efforts to preserve the confidentiality of any proprietary or confidential information or data developed by Digital Delane on behalf of VIDALITY or disclosed by VIDALITY to Digital Delane.

8.0 Term and Termination

8.1 PERIOD OF AGREEMENT AND NOTICE OF TERMINATION

This Agreement shall become effective as of 7/23/2024 and shall continue until terminated by either party upon not less than 30 days' notice in writing given by either party to the other.

8.2 TERMINATION FOR CAUSE

Unless otherwise agreed to by the parties, The Services shall commence upon the original date of order by Client, for an initial minimum term of six months ("Initial Term"), and continuing month-to-month thereafter until the date terminated by either party (the "Term").

It is agreed that both the Client and Agency are entitled to cancel this agreement at any time after the expiration of the Initial Term without given reason, therefore. However, such cancellation shall only become effective on the

expiration of 30 (thirty) days from midnight of the day on which notice of the cancellation is issued via the Services Cancellation Form on this website ("Termination Date"). Official termination of services must be processed through this link: www.digitaldelane.com/cancel.

8.3 PAYMENT FOR NON-CANCELABLE MATERIALS?

Any non-cancelable materials, services, etc., we have properly committed ourselves to purchase for your account, (either specifically or as part of a plan such as modules, photography and/or external services) shall be paid for by you, in accordance with the provisions of this Agreement. We agree to use our best efforts to minimize such liabilities immediately upon written notification from you. We will provide written proof, upon request of the VIDALITY, that any such materials and services, are non cancelable.

8.4 MATERIALS UNPAID FOR

If upon termination there exist any materials furnished by us or any services performed by us for which you have not paid us in full, until such time as you have paid us in full you agree not to use any such materials, in whole or in part, or the product of such services.

8.5 TRANSFER OF MATERIALS

Upon termination of this agreement, provided that there is no outstanding indebtedness then owing by VIDALITY to Digital Delane, Digital Delane shall transfer, assign and make available to VIDALITY all property and materials in its possession or control belonging to VIDALITY. VIDALITY agrees to pay for all costs associated with the transfer of materials.

9.0 General Provisions

9.1 GOVERNING LAW

This Agreement shall be governed and construed in accordance with the laws of Los Angeles, California.

9.2 INDEPENDENT CONTRACTOR

The Client shall not control or direct the manner or means by which Agency, or Agency's employees or contractors, performs the Services, including but not limited to, the time and place Agency performs the Services. The Services performed are outside the usual course of the Client's business. Agency is customarily engaged in an independently established trade, occupation, or business of the same nature as the Services performed.

9.3. FORCE MAJEURE

In the event either party is unable to perform its obligations under the terms of this Agreement due to acts of God, acts of terrorism, pandemics or epidemics, or any event reasonable beyond its control, such party shall not be liable for damages to the other for any damages resulting from such failure to perform or otherwise from such causes.

9.4 REPRESENTATIONS AND WARRANTIES

The parties each individually represent and warrant that each has full power and authority to enter into this Agreement and to perform all of their obligations hereunder without violating the legal or equitable rights of any third party.

9.5 ENTIRE AGREEMENT

Except as otherwise set forth or referred to in this Agreement, this Agreement constitutes the sole and entire Agreement and understanding between the parties hereto as to the subject matter hereof, and supersedes all prior discussions, agreements and understandings of every kind and nature between them as to such subject matter.

If any provision of this Agreement is held to be illegal, invalid, or unenforceable under any present or future law, then that provision will be fully severable. In such instance, this Agreement will be construed and enforced as if the illegal, invalid, or unenforceable provision had never comprised a part of this Agreement, and the remaining provisions of this Agreement will remain in full force and effect.

Severity Level	Goal Response Time	Goal Resolution Time
Priority 1 :Critical	Within ~4 business hours	Average resolution time is one (1) business day or less. Digital Delane will aim to keep resolution time under three (3) business days after initial response time.
Priority 2: High	Within ~1 business day	Average resolution time is one (1) business day. Digital Delane will aim to keep resolution time under five (5) business days after initial response time.
Priority 3: Normal Priority 4: Low		Scheduled as part of the regular project cycle.

I. Warranty

Except as otherwise stated in this section, the service is provided “as is” without warranty of any kind, either express or implied, including without limitation any warranties of merchantability or fitness for a particular purpose. Agency neither assures nor assumes any liability to any person or entity for the proper performance of services. Agency does not represent or warrant that the service is complete or free from error, and does not assume, and expressly disclaims, any liability to any person or entity for loss or damage caused by errors or omissions in the service, whether such errors or other cause.

02. The Finances

A. Payment Terms

All payments are collected in advance. If the service agreement is executed before 10th of the month, the next invoice will be due on the 1st of the following month. And if the agreement is signed after 10th of the month, the client is responsible to make a lump sum payment of the current month and the following month of service.

Every invoice will have a due on receipt payment terms and will automatically charge the payment source on file every 30 days. All invoices will be considered late after the 14th day. Late payments will be charged a 2.5% per month fee compounded monthly (or the maximum allowable by law, if less than 2.5%). Should an undisputed payment be late, Digital Delane reserves the right to freeze all work until accounts are settled. If the amount of any invoice is in dispute, Client shall pay any amount that is undisputed.

B. Hourly Billing

Time & Materials is billed hourly at a rate stated in the SOW and invoiced on a monthly basis in arrears. Digital Delane will review work requests in our project management system, plan sprints and provide a cost estimate per project based upon priority. Once approved, with an executed SOW in place, work will proceed. As soon as we know that a task may go over the estimate, the Client will be alerted, and the parties will mutually agree to proceed before any work is done which exceeds the approved estimate. A breakdown of hours per billing period by task and / or by deliverable will be made available upon request.

C. Fixed Billing

Payment will be set by project milestones defined within the SOW. Upon written Client acceptance of the successful completion of the milestone, an invoice will be sent. Any scope changes during the course of the project will require a written and approved change order.

D. Retainer

Retainers are based upon the entire availability, or a fraction, of our team. We will structure the flow of work using a regular sprint planning session. Each month, the Client and the Digital Delane team will review all open tasks in the backlog together in order to determine which features should be included in the next cycle. We will allocate a predetermined percentage of our availability for time-sensitive requests which are set in sprint planning, and triage as they come in. Should the timely requests exceed planned availability, they will be added to the backlog. We are happy to consider flexing upon request if you have budget flexibility to exceed the monthly cap and if we have any additional availability. Additional hours used above the agreed retainer will be billed at a time & materials rate of **\$75/ hour**. Unused retainer hours for any given month will not roll over into subsequent months.

E. Materials

Licenses, media files, specialized software, project management tools, and any other assets or services required specifically for this project, pre-approved by Client and paid by Digital Delane, will be billed monthly. Client will buy the materials or services directly unless specifically agreed upon in writing. Any effort required by Digital Delane around purchasing tools, services or assets will be invoiced at the Time & Materials rate.

F. Travel

Client and project-related travel will be budgeted as follows:

- Working days: a day rate equal to 6 hours per person at the standard hourly rate
- Travel days: a day rate equal to 3 hours per person at the standard hourly rate
- Meals: \$75 per diem per person
- Travel out-of-pockets, including taxi, train tickets, plane tickets, gas / mileage reimbursement
- Hotel or lodging out-of-pockets, including room fees & taxes

All projected costs will be submitted to the Client before travel is booked, for review and approval. Final expenses will be invoiced as incurred. Travel costs are not included in the project estimate. However, if work included in the estimate is performed as part of the travel engagement, the Client will not be billed twice for those working hours.

G. Deposits

Some projects may require a deposit. In order to begin work on an SOW, the Client will provide Digital Delane with an initial payment as per the terms defined in the SOW. Only after sign off as described in the section titled "Client Sign Off", the deposit will be deducted from the final invoice.

H. Sales Tax

Client understands that Digital Delane will comply with all applicable sales tax or similar laws, and that Client will be responsible for all taxes incurred.

Sales tax will be added as a separate line item in addition to the cost of services invoiced to the Client. Should Digital Delane determine at any phase of the agreement that sales tax is required, Digital Delane will reissue all relevant invoices with the applicable sales tax applied.

Should Client be exempt from paying sales tax, Client must submit proof to Digital Delane in digital format (scanned) in order to avoid being charged.

I. Payment Information

ACH Payment or Wire

All invoices sent will come with an option to pay directly via ACH. This is our recommended payment method.

Credit Cards

All credit card payments will come with an additional charge of 5% to off-set processing fees. To avoid the charge, please pay via ACH.

Paper Checks

Paper Checks are accepted with a \$75 handling charge per deposit. To avoid the charge, please pay via ACH.

Mail to: DIGITAL DELANE, LLC 6080 Center Dr. 6th Floor Los Angeles, CA 90045

03. The Way We Communicate

A. Point of Contact

Digital Delane will require one point of contact during the Agreement for clarifying requirements for all services provided. Digital Delane requires this person be available to answer questions arising from the project within 2 business days (subject to reasonable exceptions), and to have authority to make project-related decisions. Client's Primary Point of Contact ("PoC") may authorize other officers or employees to respond to any issue requiring technical expertise, or may designate a new point of contact by communicating such change in writing to Digital Delane.

Client may modify these points of contact by email to the Account Manager assigned to the project.

B. Project Management & Communication

Business Day / Hour: For the purposes of this contract, "business days" and "business hours" shall be defined as Monday-Friday, from 8 a.m. to 6 p.m. Pacific Time

SMS/Text Chat: On occasion, Digital Delane will send SMS Text Messages for general project communication. We will limit this to updates and reminders and leave all official communications to email.

In urgent cases, Digital Delane account managers may ask for formal approval in any communication method (SMS Text, Email, etc.), and receive it back from the client. The project manager will articulate that it is a request for approval.

C. Project Response Times

Due to the nature of our project load, Digital Delane is not set up to support on demand services outside business hours and any window of time otherwise defined within the SOW. Within the duration of this Agreement, Digital Delane will make every effort to reply to inquiries within two business days except where the Client has been previously notified of a period of limited availability. Digital Delane will respond in good faith but cannot guarantee any specific action within a given time frame.

Should a specific Service Level Agreement for technical support be included in the SOW, response time expectations will be defined in the appropriate section and for those offering supersede our standard response timeframe.

04. The Ownership

A. Intellectual Property & Ownership

Client remains the sole and exclusive owner of its own original artwork (including, but not limited to, any and all logos, illustrations, drawings, sketches, character designs, product designs, photographs, videos, graphics, and renderings), and nothing herein shall be deemed to create or transfer any ownership rights or interests in Client's original intellectual property to Agency. If for any reason the results of Agency's services hereunder

incorporate Client's original intellectual property and are determined at any time not to be a work made for hire, Agency hereby assigns to Client all right, title and interest therein, including all copyrights as well as renewals and extensions thereto. Client grants Agency the limited, irrevocable right to use the Designs provided that Agency shall not, without Client's prior written consent, use, license, sell or otherwise authorize the use of any Design for use in connection with the marketing or promotion of any consumer product, in any format or medium, electronic or otherwise, for a period of one year from date on which such Design is first published. Agency acknowledges and agrees that Agency may not use, license, sell, reproduce, create any derivative works, or otherwise authorize the sale, license or use of any materials containing Client's original artwork or intellectual property to a third party.

Agency shall own and retain all rights to any technology, technical documentation, inventions, algorithms, software, architecture, logic, navigation, and other source files for front-end deliverables, computer programs, source codes, game engines or other backend and background elements, files and features incorporated into or utilized by the Work (collectively, "Background Technology"). Unless the parties agree otherwise in a written and signed Statement of Work, Agency shall retain ownership of any and all Background Technology, including any and all associated intellectual property rights. Agency hereby grants Client a nonexclusive, royalty-free, perpetual, irrevocable, worldwide license to use, reproduce, distribute, display and perform Agency's Background Technology, in compiled machine-readable object code form only, to the extent incorporated into deliverables provided hereunder strictly for the purposes and in the territories set out in the applicable Statement of Work. Use of Background Technology for any other project, on any other website or in any other medium shall be subject to additional fees and licenses which may be granted or withheld by Agency in its sole discretion; and

(d) If the Client desires to utilize any of the Work, whether accepted or rejected by the Client hereunder, for any marketing campaign, promotion, product, service, advertisement or any other purpose outside the scope of this Agreement, then the Client shall hire Agency to design, create, develop, market and otherwise implement such work. The Client may solicit or hire a third party to implement such Work if, and only if, Agency declines to do so and such third party is hired on terms in no way more beneficial than the terms first offered to Agency.

(e) Subject to the services provided hereunder, Agency shall retain all rights to any illustrations and other proprietary artwork, if any, listed in any SOW (each item, a "Design"), provided that Agency shall not, without Client's prior written consent, use, license, sell or otherwise authorize the use of any Design for use in connection with the marketing or promotion of any consumer product, in any format or medium, electronic or otherwise, for a period of one year from date on which such Design is first published. Except as otherwise set forth in this section, Agency grants Client the limited, exclusive, irrevocable right to use the Designs as set forth in any SOW.

B. Digital Delane Services Lines

Digital Delane's Services

Any purchase of our services offerings will be done under the terms and conditions of that service and is not covered under the terms of this Agreement.

- Consulting - These calls/meetings are non-refundable if the call is cancelled by the client.
- Website/Mobile Design - Any website or mobile app development will be developed under the terms listed here: <https://digitaldelane.com/web-design-terms/>
- Creative Design -

Digital Delane's Tools

We use tool sets owned and managed by Digital Delane. These tools are fundamental to the development of client project. We utilize them to successfully execute and report the services defined in the SOW. These tools may be licensed for the Client's use. Client will not distribute or use the tools on projects outside of those defined within the associated SOWs, or otherwise utilize it in a manner objectionable to Digital Delane. Should the Client desire to purchase standalone access once this Agreement has expired or for projects not defined in the SOWs, they can do so as part of a separate contract.

Finished Project(s).

Unless a specific time period is defined within the SOW, Client may use the project(s) elements indefinitely so long as the Client continues to comply with the terms of this Agreement and any applicable SOW. Digital Delane provides no guarantee outside the terms defined in the SOW to support the Client's continued use of the project(s) elements.

C. Credit

We take great pride in our work and like to share our combined success. Client agrees that Digital Delane shall have the right to include the relevant Client brand within its roster of clients. When publicly available, the Client's project will be directly referenced as part of Digital Delane's business portfolio.

05. The Limits

A. Dependencies

In the event that any aspect of this Agreement is dependent on a separate third party or the Client's in-house team, the quality and punctuality of the Finished Project(s) (defined below) may be subject to said party's ability to meet the required timelines and / or level of quality. Digital Delane is not responsible for any delay or defect caused by a separate third party or the Client's in-house teams except in such cases where Digital Delane has engaged such third party to perform a portion of Digital Delane's obligation under any applicable SOW.

B. Content & Copyright

Client is ultimately responsible for the creation, entry, design, review, and final quality of all their content. This includes web copy, media files, documents and assets. Specific responsibilities from both Digital Delane and the Client will be defined in the SOW or documented during the planning phase.

Client will obtain permission from any copyright owner to use their asset (stock media, code library or snippet, font and third party tool) that has any restrictions, requires payment or affects the copyright or ownership of the deliverable.

C. Independent Contractors

Digital Delane may, at its sole discretion, engage subcontractors to fulfill any portion of this Agreement or the SOW or delegate its obligations to a third party, provided that such delegation shall not relieve Digital Delane of its obligations hereunder or thereunder.

Nothing in this Agreement will create, or be deemed to create, a partnership or the relationship of employer and employee between the parties. Digital Delane shall be responsible for the payment of compensation to its own employees and subcontractors and shall be responsible for the proper reporting and payment of all federal, state, and local taxes due on payments made to Digital Delane by the Client. The parties shall pay all employment taxes, including, without limitation, worker's compensation, statutory disability insurance and unemployment insurance, applicable to the respective party and its respective employees and subcontractors. The parties shall have the sole responsibility for providing such benefits to its respective employees and/or subcontractors.

Except as otherwise set forth in this Agreement, neither party shall be responsible for the responsibilities, taxes, or otherwise of the other party. Neither party nor any employee or subcontractor employed by either party shall act, appear to act, or be deemed for any purpose whatsoever to be an agent, employee, servant or representative of the other party.

D. Non-solicitation

If during or within one year of termination of this agreement the Client solicits and then hires or contracts with any employee, independent contractor, or supplier of Digital Delane, the Client will agree to pay Digital Delane, a finder's fee of 50% of the annual salary or contract fees offered to the contractor, supplier, or employee. Said payment will be rendered within 30 days of hiring or contracting the contractor or employee. Client will not solicit

anyone affiliated with the Agency for the purpose of circumventing the Agency, the result of which shall be to prevent the Agency from realizing or recognizing a profit, fees, or otherwise, without the specific written approval of the Agency. If such circumvention shall occur, the agency shall be entitled to any commissions due pursuant to this Agreement or relating to such transaction.

E. Limited Liability

Digital Delane shall not be liable or responsible, nor be deemed to have defaulted or breached this Agreement, for any failure or delay in fulfilling any term of this Agreement when such failure or delay results from acts or circumstances beyond reasonable control. Such circumstances include, without limitation, acts of God, flood, fire, earthquake, explosion, governmental actions, war, invasion or hostilities (whether war is declared or not), terrorist threats or acts, zombie apocalypse, riot, or other civil unrest, national emergency, revolution and insurrection, epidemic, lock-outs, strikes or other labor disputes (whether or not relating to either party's workforce), or restraints or delays affecting carriers or inability or delay in obtaining supplies of adequate or suitable materials, telecommunication breakdown or power outage, provided that, if the event in question continues for a continuous period in excess of 30 days, Client shall be entitled to give notice in writing to terminate this Agreement.

Indemnification

Client agrees to indemnify, defend and hold Agency harmless from and against all third party claims, losses, liabilities, costs and expenses arising out of or related to the use of the Service by the Client, or attributable to Client's breach of this Agreement, provided that Agency gives Client prompt written notice of any such claim.

Disclaimer

Agency shall have no liability under or in any way related to this agreement for any loss, loss of profit or revenue or for any consequential, indirect, incidental, special or exemplary damages, even if Agency is aware of the possibility of such loss or damages. Some states do not allow the exclusion or limitation of incidental or consequential damages, so the above limitation or exclusion may not apply.

06. The Law

A. Review and Expiration

This Agreement is valid for one calendar year beginning on the Effective Date. It will automatically renew for an additional one calendar year term, unless notice of termination or nonrenewal is given by either party, within 30 days of the renewal date.

B. Cancellation

Either party may terminate this Agreement for any reason upon giving 30 days' prior written notice to the other. Upon termination of this Agreement by Client without Agency's fault or consent, Client shall pay Agency, in addition to all of the fees earned by Agency pursuant to the terms hereof, an early termination fee equal to 50% of the total remaining fees payable to Agency hereunder (as specified in the SOW), plus any and all expenses and third party costs reasonably incurred by Agency through the effective date of cancellation. At Agency's election, Client's delay of work under this Agreement for a cumulative period of more than 30 days without Agency's fault or consent shall be considered a termination of this Agreement by Client within the meaning of the immediately preceding sentence. If Client desires to terminate this Agreement due to Agency's fault, Client shall give Agency written notice detailing the nature of Agency's fault and possible remedies, whereupon Agency shall have a reasonable period of time (but in no event less than 30 days) to cure such fault. Termination by Client without providing the foregoing notice and cure period shall be considered "termination without Agency's fault" as described above.

The language of this Agreement shall not be interpreted in favor of or against any party as the drafter of this Agreement.

C. Dispute Resolution

All claims and disputes between the Parties relating in any way to this Agreement or the transactions contemplated hereby which cannot be resolved through their good faith discussions (a "Dispute") shall be submitted to mandatory non-binding mediation by either Party to an impartial mediator appointed through the Judicial Arbitration and Mediation Services ("JAMS") in Los Angeles, California, for a good faith effort at resolution. The mediator shall review the Dispute within thirty (30) days of submission or at such other time provided the Parties so agree. Any mediation fee shall be paid equally among the Parties. Any Dispute which is not resolved through such mandatory mediation shall be settled by final and binding arbitration before a single neutral arbitrator of JAMS who shall be a retired judge in accordance with the then current JAMS Comprehensive Arbitration Rules and Procedures in Los Angeles, California. Judgment on the award rendered by the arbitrator may be entered in any court in California. Each Party agrees that the Dispute as mediated and/or arbitrated and the final resolution of such Dispute shall be considered to be confidential information. The prevailing Party in any such arbitration shall be awarded its reasonable attorneys' fees and costs as determined by the arbitrator.

D. Governing Law

Any and all disputes that may arise between Digital Delane and the Client regarding the terms of this Agreement shall be construed and enforced in accordance with the laws of the State of California. In any action arising out of this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs.

07. The Dotted Line

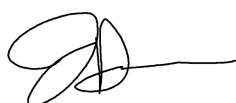
Any change to this contract shall be subject to mutual written agreement of the parties.

IN WITNESS WHEREOF, the parties have so agreed as of the date written below



Founder | VIDALITY

Juntae DeLane



CEO | DIGITAL DELANE

Signature Certificate

Reference number: 8B7E76E2-E54B-4137-A4DD-E2BA54451484

Sent on July 23, 2024 8:57 PM UTC

Signed By

Signature

Deborah Tucker
debbttucker@gmail.com

Viewed: July 23, 2024 9:00 PM UTC
Signed: July 23, 2024 9:33 PM UTC

A rectangular box containing a handwritten signature in black ink that reads "Deborah Tucker".

IP address: 2603:8000:9903:1706:3577:bbbb:c73a:b93c
Location: San Fernando, US

Document completed by all parties on
July 23, 2024 9:33 PM UTC